

26NNCV04524 26NNCV04524

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Case Number: 26NNCV04524 Hearing Date: August 21, 2026 Dept: B

Hon. Victor Avila, Dept B

Motion for Preliminary Injunction

Hearing Date: 8/21/26

CASE NO.: 26NNCV04524

CASE NAME: Leticia Prado, et al. v. Graff

Holding, LLC, et al.

Moving Party: Plaintiff Leticia Prado

Responding Party: Defendants Gala Holdings,
LLC and Garik Hadjinian

Notice: Sufficient

Ruling: DENY.

NOTICE

The

Court is not requesting oral argument on this matter/motion. The Court is guided by California Rules of Court, Rule 3.1308(a)(1) whereby notice of intent to appear is requested. Unless the Court directs argument in the Tentative Ruling, no argument is requested and ANY PARTY SEEKING ARGUMENT SHOULD NOTIFY ALL OTHER PARTIES AND THE COURT BY 4:00 P.M. ON THE COURT DAY BEFORE THE HEARING of the party's intention to argue as to this

matter/motion. The tentative ruling will become the ruling of the court if no argument is received. Notice may be given either by email at or by telephone at (818) 260-8422.

Counsel must appear on all other matters scheduled for this case.

BACKGROUND

Plaintiffs Leticia Prado and Jack Eliakim (Plaintiffs) have occupied and maintained the property located at 4663 Kraft Ave., North Hollywood CA 91602 (Subject Property) as their primary residence since 2023. Plaintiffs have since defaulted on the promissory note securing the deed of trust on the Subject Property.

On June 8, 2026, Plaintiffs, in pro per, filed a Complaint against defendants Graff Holding, LLC, Gala Holdings, LLC, Garik Hadjinian, and So-Cal Advisory alleging 34 causes of action concerning possession of the Subject Property.

Plaintiffs seek a preliminary injunction based on the irreparable harm that would result from losing title of the Subject Property and their belief that they will succeed on the merits of this action.

On June 11, 2026, the Court denied Plaintiffs' first ex parte application for preliminary injunction for lack of timely and proper notice. (See 6.11.26 Minute Order.) On June 17, 2026, the Court denied Plaintiff's renewed temporary-restraining order request on procedural grounds and set the instant preliminary-injunction hearing to be addressed separately. (See 6.17.24 Minute Order). On July 13, 2026, Defendants filed an opposition presumptively based on oral argument at the June 17, 2026, hearing. (Ibid.) Plaintiffs have not filed a reply as of July 21, 2026.

On July 23, 2026, the Court granted Plaintiffs' Ex Parte application to continue the hearing to August 21, 2026.

REQUEST FOR JUDICIAL NOTICE

Defendants request judicial notice of Exhibits: (A) Trustees

Deed Upon Sale Concerning the Subject Property, recorded in the Official Records of Los Angeles County; (B) Order Granting Motion for Relief From the Automatic Stay, In re Jack Eliakim, United States Bankruptcy Court for the Central District of California, Case No. 1:26-bk-10096-VK, Docket No. 32; (C) Bankruptcy Court Tentative Ruling, In re Jack Eliakim, Case No. 1:26-bk-10096-VK, Docket No. 30; (D) Order Dismissing Chapter 13 Case, In re Jack Eliakim, Case No. 1:26-bk-10096-VK, Docket No. 29; (E) Schedules filed by Jack Eliakim, In re Jack Eliakim, Case No. 1:26-bk-10096-VK, Docket No. 16; (F) the Court's June 17, 2026, Minute Order in the instant action; and (G) the Court's June 11, 2026 Minute Order in the instant action. The request is granted. (Evid. Code § 452(d).)

LEGAL

STANDARD

The purpose of a preliminary injunction is to preserve the status quo and prevent irreparable harm pending a trial on the merits. (White v. Davis (2003) 30 Cal.4th 528, 554.) To obtain a preliminary injunction, a moving party must show: (1) she would likely suffer an irreparable injury for which damages would be an inadequate remedy if the injunction were denied; and (2) there exists a reasonable probability that she will prevail on the merits of her claims. (Huong Que, Inc. v. Luu (2007) 150 Cal.App.4th 400, 408.)

DISCUSSION

Plaintiffs base

their argument for equitable relief on the risk of facing imminent transfer and enforcement of title and loss of possession of their primary residence. (Ex Parte Mot., p. 9.) Plaintiffs argue that the foreclosure sale is void because it was conducted in violation of an automatic stay and bankruptcy filings. (Ex Parte Mot., pp. 8-9.) Further, Plaintiffs argue they are likely to prevail on the merits because the foreclosure sale is voidable, Defendants failed to provide notice of the foreclosure sale, and Defendants were not transparent about their roles. (Ex Parte Mot., p. 8.)

In opposition, Defendants

argue that Plaintiffs' request for preliminary injunction rests on an alleged automatic stay, which has already been adjudicated in bankruptcy court. (Opp., p. 3.) Moreover, Defendants argue that the foreclosure sale at issue took place January 20, 2026, and was promptly recorded in May, well before Plaintiffs filed their

Complaint. (Opp., p. 4.) Thus, no irreparable injury is at risk of occurring. (Ibid.) Further, Defendants argue that Plaintiffs have not established probability of recovering title from defendant Gala, who currently holds title to the Subject Property. (Opp., p. 6.)

Here, Plaintiffs

filed for bankruptcy one day before the trustee's sale was scheduled to take place. (RJN, Exh. C.) Although Plaintiffs bankruptcy attorney requested the sale be stopped the morning of, the sale took place. (Ibid.) This is Plaintiffs' basis for voidability. However, on April 23, 2026, the bankruptcy court entered an order granting Defendants relief under title 11 United States Code section 362(d)(1) and (d)(4). (Ibid.) The court annulled the automatic stay retroactively to the petition date and determined that Defendants did not violate the stay. (Ibid.) Moreover, Plaintiffs' bankruptcy proceedings were adjudicated on April 16, 2026, prior to the filing of this action. (RJN, Exh. D.) Further, the Trustee's Deed Upon Sale concerning the Subject Property had been recorded after adjudication of Plaintiffs' bankruptcy proceedings and prior to the filing of Plaintiffs' Complaint. (RJN, Exh. A.)

The Court

acknowledges that the irreparable injury Plaintiffs are trying to prevent is the loss of possession of the property through eviction. However, Plaintiffs are trying to prevent conduct that occurred months prior to the filing of the Complaint. Thus, considering the bankruptcy court adjudication and documents submitted by Defendant, Plaintiffs have not demonstrated a reasonable probability of success.

Accordingly, the motion is DENIED

CONCLUSION
AND ORDER

Plaintiffs Leticia Prado and Jack
Eliakim's Motion for Preliminary Injunction is DENIED.

MOVING PARTY shall provide notice.